

		which time they gained access to and knowledge of the Domains, including registration details, redirects, and associated digital infrastructure. This relationship imposed fiduciary duties on Defendants to act in Plaintiffs' best interests regarding the Domains." (Compl. ¶ 11.) Defendants contend that, based on the complaint in the First Geraci Action, Defendants provided IT services to the California entity; and not to either of the Plaintiffs in this action. Therefore, Defendants contend, there was no fiduciary relationship. The Court declines to find that the allegations of the complaint in the First Geraci Action preclude a finding that Defendants herein provided IT services to Plaintiffs herein. The demurrer to the twelfth cause of action is OVERRULED. Defendants' request for judicial notice of the Complaint in the first Geraci action is GRANTED pursuant to Evid Code §452(d). Plaintiffs' request for judicial notice is DENIED as immaterial to the disposition of these motions. <u>Motion to Strike</u> Defendants move to strike the following portions of the Complaint: • Paragraph 18 (p. 4:17): "Defendants' actions were willful, malicious, and oppressive, warranting punitive damages." • Prayer for Relief (p. 8:14): "For punitive and exemplary damages;" The motion to strike is GRANTED with leave to amend. For the reasons discussed above, Plaintiffs have failed to plead fraud. Further, there are no factual allegations to support malice or oppression. Plaintiffs shall have 20 days leave to amend. <i>Defendants to give notice.</i>
205	Bank of America, N.A. vs. Alves, 25-01474865	Defendant Jacqueline D. Alves moves to set aside the entry of default against defendant and co-trustee James J. Alves pursuant to Code of Civil Procedure section 473(b) and (d). As an initial matter, the Court notes that Jacqueline has submitted this motion on behalf of James because James is currently out of the state. However, Jacqueline is not a licensed attorney. Ordinarily, one party acting in pro per may

		not represent another party in that action and an attempt to do so would constitute the unauthorized practice of law. (<i>J.W. v. Superior Court</i> (1993) 17 Cal.App.5th 958, 966.) However, the Court notes that Jacqueline and James are spouses who have both been served as defendants. Code of Civil Procedure section 371 provides: "If spouses are sued together, each may defend for his or her own right, but if one spouse neglects to defend, the other spouse may defend for that spouse's right also." The Court finds that because James is currently out of state and has not acted on his own behalf in defense of this action, that Jacqueline's submission of the instant motion on his behalf is not improper. However, Jacqueline is admonished that future attempts to represent James in this action where he has not neglected to defend himself may be unauthorized. The court is empowered to relieve a party "upon any terms as may be just . . . from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473(b).) Application for an order for relief "shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (Ibid.) Here, on September 29, 2025, Jacqueline filed an ex parte application for extension of time to serve an answer or other responsive pleading. That application was granted on October 2, 2025 and the Court ordered that a pleading must be served and filed no later than January 14, 2026. Default was entered against James upon the mistaken belief that the Court's October 2 order related to James's deadline to file a responsive pleading as well as Jacqueline's. The instant motion was timely filed shortly after the default was discovered. Based on the above, the Court finds that the default was entered as a result of mistake. The motion to set aside is therefore GRANTED. James is ORDERED to file an answer or other responsive pleading within 20 days. The Case management Conference is continued to September 24, 2026 at 1:30 p.m. <i>Defendant to give notice.</i>
206	Hoshour vs. Montgomery, 24-01392447	Plaintiffs David Guy Hoshour and Wensun Chen seek an order compelling Defendant Annelise Montgomery to provide further responses to Request for Production of Documents, Set 1 on October 11, 2025. (ROA 60) Plaintiffs also seek an order compelling responses to Form Interrogatories, Set One served on Defendant on October 11, 2025. (ROA 68)